

Track 1 — Chapter Build Pass

MPEP Chapter 2700 · Patent Term Adjustment and Extension

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Going Deeper Than the Chapter 1300 PTA Overview

The Chapter 1300 PDF introduced PTA at a high level; this chapter goes deeper into the actual A/B/C-delay mechanics, the no-double-counting rule, and the separate PTE (Hatch-Waxman) mechanism for regulatory delay — genuinely useful detail once you're past the basics.

Rule 1: The A/B/C Delay Framework for Patent Term Adjustment (§2731-2734)

PLAIN ENGLISH

Patent Term Adjustment (PTA) compensates for USPTO delay using three categories: **A-delay** (Office failing to act within specific statutory time frames, e.g., first action within 14 months of filing), **B-delay** (total pendency exceeding 3 years from filing to issuance, excluding certain applicant-caused or excluded time), and **C-delay** (delay due to interferences/derivation proceedings, secrecy orders, or successful appellate review). A-delay and B-delay generally can't be double-counted for the same period — PTA takes the greater, not the sum, for overlapping days.

EXAMPLE

If the Office misses the 14-month first-action deadline (A-delay) AND overall pendency exceeds 3 years (B-delay) for overlapping days, the applicant doesn't get both added together for those overlapping days — PTA law avoids double-counting the same period under multiple categories.

QUIZ

If both A-delay and B-delay periods overlap on the same days, how is PTA calculated for those overlapping days?

- (A) Both are added together (double-counted)
- (B) Overlapping days are not double-counted — PTA credits the days once
- (C) Only C-delay applies in cases of overlap
- (D) The application forfeits all PTA

Rule 2: Applicant-Caused Delay Reduces PTA (§2732)

PLAIN ENGLISH

PTA is **reduced** for periods of time attributable to the applicant failing to engage in 'reasonable efforts' to conclude prosecution — including taking extensions of time to respond (even paid, authorized ones), late-filed responses, and certain other applicant-caused delays, regardless of whether those extensions were properly requested.

EXAMPLE

An applicant takes a 3-month extension of time to respond to an Office action. Even though this extension is entirely proper and paid for, it still counts as applicant-caused delay that reduces the overall PTA otherwise available, offsetting some of any USPTO-caused delay.

QUIZ

Does taking a properly requested and paid extension of time reduce available PTA?

- (A) No, extensions never affect PTA
- (B) Yes — extensions of time generally count as applicant-caused delay that reduces PTA
- (C) Only unpaid extensions reduce PTA
- (D) Only if the extension exceeds 3 months

Rule 3: Requesting Reconsideration of a PTA Determination (§2735)

PLAIN ENGLISH

An applicant who disagrees with the Office's initial PTA calculation (provided with the Notice of Allowance or on the patent itself) may file a request for reconsideration, generally within a specific window (commonly within 2 months of the patent's grant, extendable), providing evidence/argument for a different calculation.

EXAMPLE

A patentee believes the Office miscounted certain days as applicant delay when they were actually USPTO delay. They can file a request for reconsideration of the PTA determination, within the applicable time period, with supporting argument.

QUIZ

What can an applicant do if they believe the Office's PTA calculation is incorrect?

- (A) Nothing, PTA determinations are final and unreviewable
- (B) File a request for reconsideration within the applicable time period
- (C) File a reissue application only
- (D) Wait until the next maintenance fee payment to raise it

Rule 4: Patent Term Extension (PTE) — A Different Mechanism for Regulatory Delay

PLAIN ENGLISH

Patent Term Extension (PTE), distinct from PTA, compensates for regulatory review delay — most commonly under the **Hatch-Waxman Act** for drugs/medical devices delayed by FDA approval processes. PTE has its own eligibility rules (e.g., generally only one patent per approved product can be extended) and a separate application/petition process from PTA's largely automatic calculation.

EXAMPLE

A pharmaceutical patent covering an active ingredient that underwent lengthy FDA clinical trial and approval review may be eligible for PTE to compensate for regulatory review time — a completely different mechanism from ordinary PTA, which addresses USPTO-caused prosecution delay instead.

QUIZ

What kind of delay does Patent Term Extension (PTE) primarily compensate for, as distinct from PTA?

- (A) USPTO examination delay
 - (B) Regulatory review delay (e.g., FDA approval process)
 - (C) Applicant-caused delay
 - (D) PCT international phase delay
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. The USPTO misses the 14-month first-action deadline (A-delay), and separately, total pendency exceeds 3 years (B-delay), with some overlapping days between the two. How are the overlapping days counted?

- (A) Counted twice, once under each category
- (B) Counted once, not double-counted
- (C) Not counted at all
- (D) Counted only under C-delay

2. An applicant takes two separate, properly paid 2-month extensions of time during prosecution. What is the likely effect on PTA?

- (A) No effect, extensions never reduce PTA
- (B) PTA is reduced for the applicant-caused delay from those extensions
- (C) PTA automatically doubles
- (D) The application becomes abandoned

3. What is the general mechanism to challenge an incorrect PTA calculation from the Office?

- (A) A request for reconsideration, within the applicable time period
- (B) An appeal to the PTAB
- (C) A petition to the Federal Circuit only
- (D) There is no way to challenge it

4. Which type of delay does Patent Term Extension (PTE) address, as distinct from ordinary PTA?

- (A) USPTO prosecution delay
- (B) Regulatory (e.g., FDA) approval delay
- (C) PCT national stage entry delay
- (D) Maintenance fee payment delay

Memorize This: Key Tests & Terms

- PTA = **A-delay** (missed USPTO deadlines), **B-delay** (pendency over 3 years), **C-delay** (interferences/derivation, secrecy orders, successful appeals).
- Overlapping A/B-delay days are **not double-counted**.
- **Applicant-caused delay** (including proper, paid extensions of time) **reduces** PTA.
- PTA determinations can be challenged via a **request for reconsideration** within the applicable time period.
- **PTE** (Hatch-Waxman) $\neq$ PTA — PTE addresses **regulatory (FDA) delay**, a completely different mechanism and eligibility framework.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: The A/B/C Delay Framework for Patent Term Adjustment (§2731-2734)

If both A-delay and B-delay periods overlap on the same days, how is PTA calculated for those overlapping days?

Answer: B

The no-double-counting rule for overlapping A/B-delay periods is a specifically, frequently tested PTA mechanic — overlapping days count once, not multiple times.

Rule 2: Applicant-Caused Delay Reduces PTA (§2732)

Does taking a properly requested and paid extension of time reduce available PTA?

Answer: B

Even fully proper, paid extensions of time count against the applicant for PTA reduction purposes — a frequently tested point, since it surprises people that a legitimate procedural right still carries a PTA cost.

Rule 3: Requesting Reconsideration of a PTA Determination (§2735)

What can an applicant do if they believe the Office's PTA calculation is incorrect?

Answer: B

PTA determinations aren't simply final and unchallengeable — a request for reconsideration is the specific, time-limited mechanism to contest the calculation.

Rule 4: Patent Term Extension (PTE) — A Different Mechanism for Regulatory Delay

What kind of delay does Patent Term Extension (PTE) primarily compensate for, as distinct from PTA?

Answer: B

PTE (Hatch-Waxman) addresses regulatory approval delay (FDA, etc.), a fundamentally different problem from PTA's focus on USPTO prosecution delay — don't conflate the two mechanisms or their eligibility rules.

Chapter Close-Out Quiz

1. (B)

Overlapping A-delay and B-delay days are counted once, not added together — a specific anti-double-counting rule in PTA calculation.

2. (B)

Even properly requested and paid extensions of time count as applicant-caused delay, reducing available PTA.

3. (A)

A request for reconsideration, filed within the applicable time period (commonly within 2 months of grant), is the standard mechanism to contest a PTA determination.

4. (B)

PTE (Hatch-Waxman) compensates specifically for regulatory review delay (e.g., FDA approval), a distinct problem from PTA's focus on USPTO prosecution delay.

End of Chapter 2700 (Patent Term Adjustment and Extension). This completes the full expanded chapter set, including all previously-skipped chapters.